

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JULY 2, 2026, AT 8:30 A.M.

scope of the employment. The plaintiff has the burden of proof to demonstrate the negligent act of the employee was committed within the scope of employment. [Citation.] Whether an act is within the scope of employment is a question of fact, unless the facts are undisputed and no conflicting inferences are possible, in which case the question is one of law.” (*Hartline v. Kaiser Foundation Hospitals* (2005) 132 Cal.App.4th 458, 465.) Additionally, “an employee's willful, malicious and even criminal torts may fall within the scope of his or her employment for purposes of respondeat superior, even though the employer has not authorized the employee to commit crimes or intentional torts.” (*Lisa M. v. Henry Mayo Newhall Memorial Hospital* (1995) 12 Cal.4th 291, 296–97.)

Here, when taking the factual allegations in the complaint as true, plaintiff does not allege facts sufficient to state the vicarious liability cause of action. Accordingly, the demurrer is sustained with leave to amend as to the sixth cause of action.

In sum, the demurrer is sustained with leave to amend as to the third, fourth, fifth, and sixth causes of action. Plaintiff shall file and serve an amended complaint on or before **July 13, 2026**.

14. S-CV-0056468 KM AUTO REPAIR v. SHIVA AUTO REPAIR

Defendant Ranjeet Singh’s Motion for Leave to File Cross-Complaint

Preliminary Matters

The court first notes that all motions heard on the law and motion calendar must include the language from Placer County Local Rule, Rule 20.2.3, subdivision (C) in the notice of motion.

Moreover, the court, on its own motion, strikes the cross-complaint—filed with the court on February 26, 2026—from the record because it was filed without leave of court after defendants already answered and is therefore an improper filing.

Ruling on Motion

Defendant Ranjeet Singh seeks leave of court to file a cross-complaint.

A defendant who fails to file a cross-complaint at the time of filing the answer must seek leave from the court to file the cross-complaint. (Code Civ. Proc., §§ 426.50, 428.50, subd. (a).) Leave to file a compulsory cross-complaint is generally granted

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unless the defendant has not acted in good faith or there is substantial prejudice to the plaintiff if leave is granted. (*Silver Organization Ltd. v. Frank* (1990) 217 Cal.App.3d 94, 98–100; *Foot's Transfer & Storage Co. v. Superior Court* (1980) 114 Cal.App.3d 897, 902–03.)

Defendant does not attach a proposed cross-complaint to his motion for the court's consideration. Thus, the court is unable to determine whether any alleged causes of action are pled with minimal sufficiency to survive a demurrer. Accordingly, defendant's motion is denied without prejudice.

15. S-CV-0056864 ESTATE OF LEONIDAS CASTRO v. JANSEN, WILL

Defendant Will Bryan Jansen's Motion to Strike Portions of Plaintiffs' Complaint

Preliminary Matters

The court notes there is insufficient evidence the parties complied with Placer County Local Rule 20.2.1, which provides "Prior to filing any motion or demurrer, the moving party must make a reasonable and good faith attempt to resolve the matter, and if resolution is not possible, must attempt to coordinate hearing dates with any opposing parties. A declaration setting forth facts supporting such attempt must be filed with the motion. Orders for examination are exempt from the requirements of this section." (Placer County Local Rule, rule 20.2.1.)

Additionally, defendant's notice of motion does not include the required language found in Placer County Local Rule 20.2.3, subdivision (C)(1).

The parties are admonished they must comply with the Placer County Local Rules for subsequent filings.

Ruling on Motion

Defendant moves to strike (1) lines 7 through 10 on page 15, (2) lines 24 through 25 on page 15, and (3) line 19 on page 16 in plaintiffs' complaint regarding the punitive damages allegations on the grounds the complaint does not allege a basis for such relief. (Code Civ. Proc. §§ 435, 436.)

Punitive damages are available "where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice." (Civ. Code § 3294, subd. (a).) Malice is "conduct which is intended by the defendant to cause